

Merchant Shipping (Seafarer Accommodation) Rules, 2016

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Merchant Shipping (Seafarer Accommodation) Rules, 2016

UNION OF INDIA

India

Merchant Shipping (Seafarer Accommodation) Rules, 2016

Rule MERCHANT-SHIPPING-SEAFARER-ACCOMMODATION-RULES-2016 of 2016

Published on 26 August 2016

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Merchant Shipping (Seafarer Accommodation) Rules, 2016

Published vide Notification No. G.S.R. 824(E), 26th August, 2016

Ministry of Shipping

G.S.R. 824(E). - Whereas, draft of the Merchant Shipping (Seafarer Accommodation) Rules, 2016 were published, as required by sub-section (1) of Section 175 of the Merchant Shipping Act, 1958 (

44 of 1958

) vide G.S.R. 346(E), dated the 28th March, 2016, inviting objections and suggestions from all persons likely to be affected thereby till the expiry of thirty days from the date of publication of the said notification in the Official Gazette;

And, whereas the copies of the said Gazette were made available to the public on the 28th March, 2016;

And whereas one objection or suggestion has been received and considered on the said draft;

Now, therefore, in exercise of the powers conferred by section 175 read with section 457 of the Merchant Shipping Act,

1958 the Central Government hereby makes the following rules, namely:-

1.

Short title, commencement and application.

(1)

These rules may be called the Merchant Shipping (Seafarer Accommodation) Rules, 2016.

(2)

They shall come into force on the date of their publication in the Official Gazette.

(3)

These rules shall apply to every ship registered or so required to be registered under the Merchant Shipping Act, 1958 (44 of 1958) except ships engaged in fishing activities, traditionally built ships such as dhows and junks, and ships of war or naval auxiliaries:

Provided that the requirements under these rules which relate to ship construction and equipment shall not apply in the case of ships the keel of which was laid or was at a similar stage of construction before the coming into force of these rules:

Provided further that such ships comply with the requirements specified in the Merchant Shipping (Crew Accommodation) Rules, 1960, as in force immediately before the coming into force of these rules.

Provided also that the provisions of these rules shall not apply to any ship plying in voyages within territorial waters, the seafarers of which are not required to stay on board overnight for periods exceeding eight hours.

Explanation 1. - A ship shall be deemed to have been constructed on the date when its keel is laid or when it is at a similar stage of construction.

Explanation 2. - For the purpose of this sub-rule "similar stage of construction" means a stage at which assembly of that ship has commenced comprising of at least fifty tonnes or one per cent of the estimated mass of all structural material, whichever is less.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(b)

"approved" means approved or accepted by the Directorate;

(c)

"Directorate" means the office of the Director General or a person or a body of persons so authorised to act on behalf of the Director General by the Central Government;

(d)

"gross tonnage" means the measure of the overall size of a ship determined in accordance with the Merchant Shipping (Tonnage Measurement of ships) Rules, 1987.

(e)

"Merchant Shipping Notice" means a notice described as such and issued by the Directorate;

(f)

"new ship" means a ship constructed on or after coming into force of these rules;

(g)

"Schedule" means the Schedule annexed to these rules;

(h)

"ship-owner" means the owner of a ship, or any body of persons or any person such as the manager, agent or bareboat charterer, who has assumed the responsibility for operation of the ship from such owner and who, on assuming such responsibility, has agreed to take over the duties and responsibilities imposed on such owner in accordance with these rules, regardless of whether any other body of persons or persons fulfill certain of the duties or responsibilities on behalf of the owner of a ship.;

(i)

"special purpose ships" means ships constructed in compliance with the Special Purpose Ships Code (IMO Code of Safety for Special Purpose Ships, 1983, and its subsequent versions);

(j)

"surveyor" means a surveyor appointed under section 9 of the Act;

(k)

"trunked mechanical ventilation system" means a system of ventilation complying with the specifications set forth in the Second Schedule

(l)

"washing accommodation" does not include any sleeping room or hospital ward, whether or not provided with a wash basin, bath or shower; or any room appropriated for use only as a laundry.

(2)

The words and expressions used in these rules and not defined but defined in the Act shall have the same meanings as assigned to them in the Act.

3.

No structure shall be deemed to be watertight, gastight, or oil tight for the purposes of these rules unless all openings in that structure, other than ventilation openings necessary for the admission of air from passageways to sanitary accommodation, laundries, drying rooms or galleys, are provided with means of closure which shall enable such openings to be made watertight, gastight or oil tight, as the case may be.

4.

Seafarer accommodation.

- Every ship shall provide and maintain, as a minimum, decent accommodation and recreational facilities for seafarers working or living on board, or both, consistent with promoting the seafarers' health and well-being, as per the provisions of the First Schedule.

5.

Plans.

(1)

The ship-owner of every Indian ship to which these rules apply, shall submit the plan or plans of the ship for approval to the Directorate or to a body of persons authorised by the Director General in this respect.

(2)

The plans, drawn in a suitable scale, shall clearly show the arrangement of the seafarer accommodation in the ship, its position in relation to other spaces, constructional details, various dimensions, furniture, fixtures and amenities provided therein.

(3)

Before any alteration or reconstruction is carried out in the seafarer accommodation, the ship-owner of an Indian Ship shall submit to the Directorate or to a body of persons authorised by the Director General in this respect, plans showing the proposed alteration or reconstruction relating to the seafarer accommodation for approval, and the ship's seafarer accommodation shall comply with the plan as may be approved by the Directorate or such body of persons.

6.

Certification and verification.

(1)

On being satisfied that an Indian ship has been provided with seafarer accommodation in accordance with these rules, a 'record of compliance' may be issued to such ship by the directorate or a body of persons authorised by the Director General, in the form provided in the Fifth Schedule.

(2)

The seafarer accommodation facilities and its maintenance on a ship, as per these rules, shall be verified during the initial, intermediate, renewal and additional surveys associated with the Maritime Labour Certificate and Declaration of Maritime Labour Compliance.

(3)

The survey of seafarer accommodation of an Indian ship shall be carried out by a surveyor.

7.

Application of relevant provisions of Maritime Labour Convention 2006 to ships other than Indian ships.

- A ship, other than an Indian ship, may be inspected by a surveyor, when the ship is in one of the ports, anchorages or offshore terminals in India, to determine whether the ship is in compliance with the requirements of the relevant provisions of the Maritime Labour Convention, 2006 and carry out control measures in accordance with such convention.

8.

Equivalent arrangements.

- The Director General may accept equivalent arrangements on a ship or deviations from the requirements specified in these rules, when such deviations can be clearly justified, subject to protecting the seafarers' living conditions, health and safety. The Director General may pass an appropriate order with regard to such deviations or equivalent arrangements.

First Schedule

(See rule 4)

1. General requirements for accommodation: - (1) The accommodation, recreational and catering facilities shall be designed to meet the requirements of these rules, with regard to seafarers' health and safety, protection and accident prevention, prevention of the risk of exposure to hazardous levels of noise and vibration and other ambient factors and chemicals on board ships. The construction and arrangement of the accommodation shall provide an acceptable occupational and onboard living environment for the seafarers.

(2)

All paneling, insulation, flooring and ceiling shall be of a non-combustible material and of an approved type.

(3)

Asbestos, or materials containing asbestos, shall not be used for any purpose in the seafarer accommodation.

(4)

The accommodation shall be adequately insulated.

(5)

Proper lighting and sufficient drainage shall be provided in the seafarers accommodation areas.

(6)

Paints, varnishes and other finishes used on interior surfaces in the seafarer accommodation shall be of approved type, and shall not be capable of producing excessive quantities of smoke and toxic products.

(7)

Position of Seafarer Accommodation. - (a) In ships other than passenger ships and special purpose ships (SPS), sleeping rooms shall be situated above the loadline amid ships or aft, except that in exceptional cases, where the size, type or intended service of the ship renders any other location impracticable, sleeping rooms may be located in the fore part of the ship, but in no case forward of the collision bulkhead.

(b)

In passenger ships and special purpose ships (SPS), the Director General may, on condition that satisfactory arrangements are made for lighting and ventilation, permit the location of sleeping rooms below the load line, but in no case shall they be located immediately beneath working alleyways.

(c)

There shall be adequate headroom in all seafarer accommodation; the minimum permitted headroom in all seafarer accommodation where full and free movement is necessary shall be not less than 203 centimeters. The Director General may permit some limited reduction in headroom in any space, or part of any space, in such accommodation where he is satisfied that such reduction,-

(i)

is reasonable; and

(ii)

shall not result in discomfort to the seafarers.

(8)

Construction of Bulkheads and Paneling. - (a) External bulkheads of sleeping rooms and mess rooms shall be adequately insulated. All machinery casings and all boundary bulkheads of galleys and other spaces in which heat is produced shall be adequately insulated where there is a possibility of resulting heat effects in adjoining accommodation

or passageways. Measures shall also be taken to provide protection from heat effects of steam and hot-water service pipes.

(b)

Sleeping rooms, mess rooms, recreation rooms and alleyways in the accommodation space shall be adequately insulated to prevent condensation and overheating.

(c)

The bulkhead surfaces and deck heads shall be of material with a surface easily kept clean. No form of construction likely to harbour vermin shall be used.

(d)

The bulkhead surfaces and deck heads in sleeping rooms and mess rooms shall be capable of being easily kept clean and light in colour with a durable, non-toxic finish.

(e)

The decks in all seafarer accommodation shall be of approved material and construction and shall provide a non-slip surface impervious to damp and easily kept clean.

(f)

Where the floorings are made of composite materials, the joints with the sides shall be profiled to avoid crevices.

(g)

The materials used to construct internal bulkheads, paneling and sheeting, floors and joining shall be suitable for the purpose and conducive to ensure a healthy environment.

(h)

In every ship to which these rules apply, all bulkheads enclosing or within any part of the seafarer accommodation shall be properly constructed of steel or other suitable material. If the bulkheads are exposed to the weather, they shall be of watertight and gastight construction, and means of closure shall be provided for all openings in such bulkheads so as to enable them to be made weather tight.

(i)

There shall be no direct openings into sleeping rooms from cargo spaces or machinery spaces or from galleys, store rooms, drying rooms or communal sanitary areas. That part of a bulkhead separating such spaces from sleeping rooms and external bulkheads shall be efficiently constructed of steel or other approved substance and be watertight and gas-tight.

(9)

Protection from weather, etc. - (a) The seafarer accommodation shall be accessible at all times from the open deck.

(b)

Chain pipes, and ventilator trunks to cargo spaces or tanks, where they pass through any part of the seafarer accommodation, shall be made of steel or other suitable material and shall be gastight.

(c)

Batteries for the operation of the ship's radio installation or other purposes, shall not be placed in any sleeping room provided for the seafarer, and precautions shall be taken which will ensure that fumes from such batteries do not discharge into any part of the seafarer accommodation.

(d)

Any part of the seafarer accommodation which is adjacent to any part (other than the crown) of a tank in which oil may be carried in bulk, shall be separated there from by a gastight steel division, in addition to the division which retains the oil.

(e)

If any part of the seafarer accommodation is situated on a deck which forms the crown of a space in which oil may be carried in bulk, such deck shall be oil tight. No manholes or other openings to the oil tanks shall be situated in the seafarer accommodation.

(f)

The means of access to and egress from every part of the seafarer accommodation shall be so situated that in the event of fire in any lamp room or paint room in the ship, access to and egress from the seafarer accommodation shall not be impeded.

(10)

Drainage. - (a) In every ship to which these rules apply, efficient drainage shall be provided for every part of the seafarer accommodation situated on an open deck wherever such drainage is necessary for clearing water shipped from the sea.

(b)

There shall be no drainage from any source (not being sanitary accommodation) into the sanitary accommodation forming part of the seafarer accommodation.

(11)

Marking. - (a) Every space forming part of the seafarer accommodation of a ship shall be marked inside the room with the marking specified in the Third Schedule.

(b)

No space forming part of the seafarer accommodation of a ship to which these rules apply, shall be marked whether inside or outside with any marking which may be taken to indicate that the space is appropriated for use by persons differing in number or description from the persons for whose use the space has been certified by a surveyor.

(12)

Drinking Water. - (a) In every ship to which these rules apply, the drinking water of appropriate quality, taking into account the total number of persons on board, shall always be provided in the seafarer accommodation. Provision for cold drinking water shall be made in the galleys and pantries and in the mess rooms.

(b)

Provision may also be made for the availability of cold drinking water in close proximity to the spaces where watch-keeping seafarers are on duty.

(c)

The storage, filling and distribution arrangements for drinking water shall be such as to prevent any possible contamination. A dry space, such as cofferdam, shall be provided between drinking water tanks and other tanks such as oil tanks and sewage tanks. Drinking water tanks shall not contain any piping other than that necessary for the carriage and distribution of drinking water. Air, filling and sounding pipes shall stand sufficiently above the deck.

2. Ventilation, Air-conditioning and Heating. - (1) (a) Sleeping rooms and mess rooms shall be adequately ventilated.

(b)

Ships, except those regularly engaged in trade where temperate climatic conditions do not require this, shall be equipped with air conditioning for seafarer accommodation, for separate radio room and for any centralised machinery control room. Ships below 200 gross tons are exempted from this requirement subject to provision of trunked mechanical ventilation.

(c)

All sanitary spaces shall have ventilation to the open air independently of any other part of the accommodation.

(d)

The system of ventilation for sleeping rooms and mess rooms shall be controlled so as to maintain the air in a satisfactory condition and to ensure sufficiency of air movement in all conditions of weather and climate.

(e)

Air-conditioning systems whether of a centralised or individual unit type, shall be designed to,-

(i)

maintain the air at a satisfactory temperature and relative humidity as compared to outside air conditions, ensure a sufficiency of air changes in all air-conditioned spaces, take account of the particular characteristics of operations at sea and not produce excessive noises or vibrations; and

(ii)

facilitate easy cleaning and disinfection to prevent or control the spread of disease.

(f)

Power for the operation of the air conditioning and other aids to ventilation required by the preceding paragraphs of this Schedule shall be available at all times when seafarers are living or working on board and conditions so require. However, this power need not be provided from an emergency source.

(g)

Ships, which are exclusively engaged in trade outside tropical climate areas, shall be provided with a ventilation system which will maintain the air therein in a state of purity adequate for the health and comfort of the seafarer. Such system shall be capable of being so controlled as to ensure a sufficiency of air movement under all conditions of weather and

climate to which the ship is likely to be subjected during the voyages on which she is intended to be engaged and shall be additional to any side scuttles, skylights, companions, doors or other apertures not intended solely for ventilation.

(h)

The trunked mechanical system provided on a ship shall comply with the requirements specified at Second Schedule.

(i)

Every enclosed space forming part of the seafarer accommodation of a ship, being a space not fully airconditioned or not ventilated by a trunked mechanical ventilation system, shall be provided with a natural system of inlet and exhaust ventilation.

(j)

In the seafarer accommodation of every ship, being a ship not fully air conditioned, an electric fan shall be fitted in every sleeping room, mess room, recreation room, office, Galley and pantry.

(2)

The air conditioning system, whether of a centralised type or individual unit type shall be so designed as to-

(i)

maintain the air at a satisfactory temperature of 28° with 50 per cent relative humidity when ambient temp is 35°C with 70 per cent relative humidity;

(ii)

ensure eight air changes per hour in any mess room or recreation room and six air changes in any other room, the amount of re-circulated air not exceeding 50 per cent at any stage, while at sea;

(iii)

take into account particular characteristics of operations at sea so as to avoid producing objectionable noises or vibrations; and

(iv)

facilitate easy cleaning and disinfection to prevent and control of spread of disease.

(3)

(a)

Adequate heat through an appropriate heating system shall be provided, except in ships exclusively on voyages in tropical climates.

(b)

The system of heating the seafarer accommodation, when required under these rules, shall be in operation at all times when seafarers are living or working on board and conditions require its use:

Provided that while the ship is in port, the heating system shall not be required to be in operation, if efficient temporary means of heating are provided for such parts of the seafarer accommodation as are in use.

(c)

In all ships in which a heating system is required, the heating should be by means of hot water, warm air, electricity, steam or equivalent. However, within the accommodation area, steam shall not be used as a medium for heat transmission. The heating system shall be capable of maintaining the temperature in seafarer accommodation at a satisfactory level under normal conditions of weather and climate likely to be met within the trade in which the ship is engaged.

(d)

Radiators and other heating apparatus shall be placed and, where necessary, shielded so as to avoid risk of fire or danger or discomfort to the occupants.

3. Lighting. - (1) In all ships, electric light should be provided in the seafarer accommodation. If there are no two independent sources of electricity for lighting, additional lighting should be provided by properly constructed lamps or lighting apparatus for emergency use.

(2)

In sleeping rooms an electric reading lamp should be installed at the head of each berth.

(3)

The standards of artificial lighting shall comply with standards in the Fourth Schedule.

(4)

In addition, every sleeping room and mess room in a ship shall be properly lighted by natural light:

Provided that if in any space in a passenger ship it is impracticable to provide proper natural lighting, such lighting shall not be required if adequate electric lighting is always available in that space.

(5)

The natural lighting of a sleeping room or mess room, or the artificial light in any space, shall be deemed to be proper for the purpose of this Schedule if it is sufficient to enable an ordinary newspaper to be read by a person of normal vision at any point in the room, being a point available for free movement, during day time and in clear weather.

4. Sleeping Accommodation. -(1) When sleeping accommodation on board ships is required, the following requirements for sleeping rooms shall apply-

(a)

in ships other than passenger ships, an individual sleeping room shall be provided for each seafarer.

However, in the case of ships of less than 3,000 gross tonnage or special purpose ships, the maximum number of seafarers accommodated in sleeping rooms shall not exceed the following namely:-

(i)

for ships between 3000 gross tons and 500 gross tons: Master, Chief Engineer, navigating and engineer officers in charge of a watch-1 person per room.

(ii)

for ships below 500 gross tons: Master and Chief Engineer-1 person per room

(iii)

seafarers other than (i) and (ii) above: Not more than 2 persons per room.

(b)

Separate sleeping rooms shall be provided for men and women.

(c)

Sleeping rooms shall be of adequate size and properly equipped so as to ensure reasonable comfort and to facilitate tidiness.

(d)

A separate berth for each seafarer shall in all circumstances be provided.

(e)

The minimum inside dimensions of a berth shall be at least 198 centimetres by 80 centimetres.

(f)

In single berth seafarers' sleeping rooms the floor area shall not be less than-

(i)

4.5 square metres in ships of less than 3,000 gross tonnage;

(ii)

5.5 square metres in ships of 3,000 gross tonnage or over but less than 10,000 gross tonnage; and

(iii)

7 square metres in ships of 10,000 gross tonnage or over.

(g)

However, in order to provide single berth sleeping rooms on ships of less than 3,000 gross tonnage, passenger ships and special purpose ships, the Director General of Shipping may allow a reduced floor area;

(h)

In ships of less than 3,000 gross tonnage other than passenger ships and special purpose ships, sleeping rooms may be occupied by a maximum of two seafarers; the floor area of such sleeping rooms shall not be less than 7 square metres.

(i)

On passenger ships and special purpose ships, the floor area of sleeping rooms for seafarers not performing the duties of ships' officers shall not be less than:-

(I)

7.5 square metres in rooms accommodating two persons;

(II)

11.5 square metres in rooms accommodating three persons; and

(III)

14.5 square metres in rooms accommodating four persons.

(j)

On special purpose ships, sleeping rooms may accommodate more than four persons; the floor area of such sleeping rooms shall not be less than 3.6 square metres per person.

(k)

On ships other than passenger ships and special purpose ships, sleeping rooms for seafarers who perform the duties of ships' officers, where no private sitting room or day room is provided, the floor area per person shall not be less than-

(i)

7.5 square metres in ships of less than 3,000 gross tonnage;

(ii)

8.5 square metres in ships of 3,000 gross tonnage or over but less than 10,000 gross tonnage; and

(iii)

10 square metres in ships of 10,000 gross tonnage or over.

(l)

On passenger ships and special purpose ships the floor area for seafarers performing the duties of ships' officers where no private sitting room or day room is provided, the floor area per person for junior officers shall not be less than 7.5 square metres and for senior officers not less than 8.5 square metres; junior officers are understood to be at the operational level, and senior officers at the management level.

(m)

On ships of 3000 gross tons and above, the master, the chief engineer and the chief navigating officer shall have, in addition to their sleeping rooms, an adjoining sitting room, day room or equivalent additional space consideration shall be given to the second engineer officer when practicable.

(n)

For each occupant, the furniture shall include a clothes locker of ample space (minimum 475 litres) and a drawer or equivalent space of not less than 56 litres; if the drawer is incorporated in the clothes locker then the combined minimum volume of the clothes locker shall be 500 litres; it shall be fitted with a shelf and be able to be locked by the occupant so as to ensure privacy.

(o)

Each sleeping room shall be provided with a table or desk, which may be of the fixed, drop-leaf or slide-out type, and with comfortable seating accommodation as necessary.

(p)

There shall be adequate berth arrangements on board, making it as comfortable as possible for the seafarer and any partner who may accompany the seafarer.

(q)

Where the size of the ship, the activity in which it is to be engaged and its layout make it reasonable and practicable, sleeping rooms shall be planned and equipped with a private bathroom, including a toilet, so as to provide reasonable comfort for the occupants and to facilitate tidiness.

(r)

As far as practicable, sleeping rooms of seafarers shall be so arranged that watchers are separated and that no seafarers working during the day share a room with watchkeepers.

(s)

In the case of seafarers performing the duty of petty officers there shall not be more than two persons per sleeping room.

(t)

Space occupied by berths and lockers, chests of drawers and seats shall be included in the measurement of the floor area. Small or irregularly shaped spaces which do not add effectively to the space available for free movement and cannot be used for installing furniture shall be excluded.

(u)

Berths shall not be arranged in tiers of more than two. In the case of berths placed along the ship's side, there should be only a single tier where a sidelight is situated above a berth.

(v)

The lower berth in a double tier should be not less than 30 centimeters above the floor; the upper berth should be placed approximately midway between the bottom of the lower berth and the lower side of the deck head beams.

(w)

The framework and the lee-board, if any, of a berth should be of approved material, hard, smooth, and not likely to corrode or to harbour vermin.

(x)

If tubular frames are used for the construction of berths, they should be completely sealed and without perforations which would give access to vermin.

(y)

Each berth should be fitted with a comfortable mattress with cushioning bottom or a combined cushioning mattress, including a spring bottom or a spring mattress. The mattress and cushioning material used should be made of approved material. Stuffing of material likely to harbour vermin should not be used.

(z)

When one berth is placed over another, a dust-proof bottom should be fitted beneath the bottom mattress or spring bottom of the upper berth.

(za)

The furniture should be of smooth, hard material not liable to warp or corrode.

(zb)

Sleeping rooms should be fitted with curtains or equivalent for the sidelights.

(zc)

Sleeping rooms should be fitted with a mirror, small cabinets for toilet requisites, a book rack and a sufficient number of coat hooks.

(zd)

A curtain shall be fitted to each bed, unless the room accommodates only one person.

5. Mess Rooms. - (1) Mess rooms shall be located apart from the sleeping rooms and as close as practicable to the galley.

(2)

Mess rooms shall be of adequate size and comfort and properly furnished and equipped (including ongoing facilities for refreshment), taking account of the number of seafarers likely to use them at one time.

(3)

Mess room facilities may be either common or separate. Account should be taken of factors such as the size of the ship and the distinctive cultural, religious and social needs of the seafarers.

(4)

Where separate mess room facilities are to be provided to seafarers, then separate mess rooms should be provided for-

(a)

master and officers; and

(b)

petty officers and other seafarers.

(5)

On ships other than passenger ships, the floor area of mess rooms for seafarers should be not less than 1.5 square metres per person of the planned seating capacity.

(6)

In all ships, mess rooms should be equipped with tables and appropriate seats, fixed or movable, sufficient to accommodate the greatest number of seafarers likely to use them at any one time.

(7)

There should be available at all times when seafarers are on board-

(a)

a refrigerator, which should be conveniently situated and of sufficient capacity for the number of persons using the mess room or mess rooms;

(b)

facilities for hot beverages; and

(c)
cool water facilities.

(8)
Where available pantries are not accessible to mess rooms, adequate lockers for mess utensils and proper facilities for washing utensils should be provided.

(9)
The tops of tables and seats should be of damp-resistant material.

(10)
In every ship to which these rules apply, the following equipment shall be fitted in every mess room or in a pantry readily accessible at all times by the crew using the mess room or adjacent to it, or, in the case of ship under 3000 tons in a galley-

(a)
a storage locker;

(b)
supply of cold drinking water;

(c)
means of heating drinking water for hot beverages; and

(d)
a microwave oven.

6. Sanitary facilities: - (1) All seafarers shall have convenient access on the ship to sanitary facilities meeting minimum standards of health and hygiene and reasonable standards of comfort, with separate sanitary facilities being provided for men and women;

(2)
On ships of more than 3,000 gross tons, there shall be sanitary facilities within easy access of the navigating bridge and the machinery space or near the engine room control centre.

(3)
In every ship, a minimum of one toilet, one wash basin and one tub or shower or both for every six persons or less who do not have personal facilities shall be provided at a convenient location.

(4)
In every ship other than a passenger ship, each sleeping room shall be provided with a wash basin having hot and cold running fresh water, except where such a wash basin is situated in the private bathroom provided. Ships below 200 gross tons need not meet this requirement.

(5)
In passenger ships normally engaged on voyages of not more than four hours' duration, one water closet to be provided for 12 passengers and not less than one urinal to be separately provided for gents and ladies.

(6)
Hot and cold running fresh water shall be available in all wash places.

(7)
Wash basins and tub baths should be of adequate size and constructed of approved material with a smooth surface not liable to crack, flake or corrode.

(8)
All toilets should be provided with an ample flush of water or with some other suitable flushing means, such as air, which are available at all times and independently controllable.

(9)
Sanitary accommodation intended for the use of more than one person should comply with the following, namely:-

(a)
Floors should be of approved durable material, impervious to damp, and should be properly drained.

(b)
Bulkheads should be of steel or other approved material and should be watertight up to at least 23 centimeters above the level of the deck:

Provided that the requirements of this sub-para shall not apply to bulkheads separating similar spaces (e.g., a sanitary

accommodation from another sanitary accommodation) or a bulkhead separating the sanitary accommodation from a sleeping room from which it may be directly entered.

(c)

The accommodation should be sufficiently lit, heated and ventilated.

(d)

Toilets should be situated convenient to, but separate from, sleeping rooms and wash rooms, without direct access from the sleeping rooms or from a passage between sleeping rooms and toilets to which there is no other access; this requirement does not apply where a toilet is located in a compartment between two sleeping rooms having a total of not more than four seafarers; and

(e)

Where there is more than one toilet in a compartment, they should be sufficiently screened to ensure privacy.

(10)

The laundry facilities provided for seafarers' use should include:-

(a)

washing machines;

(b)

drying machines or adequately heated and ventilated drying rooms; and

(c)

irons and ironing boards or their equivalent.

For vessels below 500 gross tons, a washing-cum-drying machine may be provided instead of washing and drying machines.

7. Hospital accommodation: - (1) Every ship, carrying 15 or more seafarers and engaged in a voyage of more than three days' duration, except those engaged in coastal trade, shall have separate hospital accommodation to be used exclusively for medical purposes. The space so appropriated shall not at any time be used for any purpose other than for the treatment of sick persons. Any ship engaged exclusively on the coastal trade of India, need not have separate hospital, if a space is designated for use as a temporary hospital in case of emergency. The area and layout of such designated space shall be so made that an injured person on stretcher can easily be carried into the space and provided medical first aid.

(2)

The hospital accommodation shall, in all weathers, be easy of access, provide comfortable housing for the occupants and be conducive to their receiving prompt and proper attention.

(3)

The hospital accommodation shall be designed so as to facilitate consultation and the giving of medical first aid and to help prevent the spread of infectious diseases.

(4)

The arrangement of the entrance, berths, lighting, ventilation, heating and water supply should be designed to ensure the comfort and facilitate the treatment of the occupants.

(5)

The number of hospital berths required shall be in the scale of at least one berth for every 50 seafarers or part thereof.

(6)

Sanitary accommodation should be provided for the exclusive use of the occupants of the hospital accommodation, either as part of the accommodation or in close proximity thereto. Such sanitary accommodation should comprise a minimum of one toilet, one wash basin and one tub or shower.

(7)

The minimum width of the entrance to every permanent hospital shall not be less than 76 centimeters.

(8)

Fittings and equipment. - Every hospital shall be provided with-

(i)

a clothes locker approximately 30 centimeter square by 61 centimeters high, and fitted with a flat top and a shelf; and

(ii)

an electric bell-pushes so arranged as to be within reach of each bed and communicating with the sleeping room of a

person in charge of the patients and the bridge.

8. Miscellaneous. - (1) In every ship, adequately ventilated compartments or lockers shall be provided for hanging oilskins and working clothes used by the seafarers.

(2)

Where separate facilities for engine department personnel to change their clothes are provided, they should be-

(a)

located outside the machinery space but with easy access to it; and

(b)

fitted with individual clothes lockers as well as with tubs or showers or both and wash basins having hot and cold running fresh water.

(3)

Airing Spaces on open deck.- All ships shall have a space or spaces on open deck to which the seafarers can have access when off duty, which are of adequate area having regard to the size of the ship and the number of seafarers on board.

(4)

Office Accommodation.- All ships of more than 3,000 gross tons shall be provided with separate offices or a common ship's office for use by deck and engine departments.

(5)

Bedding, Mess utensils and miscellaneous provisions.-The ship-owner of every ship shall provide the following for the seafarers-

(i)

clean bedding and mess utensils should be supplied by the ship-owner to all seafarers for use on board during service on the ship, and such seafarers should be responsible for their return at times specified by the master and on completion of service in the ship;

(ii)

bedding should be of good quality, and plates, cups and other mess utensils should be of approved material which can be easily cleaned; and

(iii)

towels, soap and toilet paper for all seafarers should be provided by the ship-owner.

(3)

Protection from Mosquitoes.- (a) Ships regularly trading to mosquito-infested ports shall be provided with protection against the admission of mosquitoes. Such protection shall be provided by means of self closing doors or by screens of rust proof wire or other suitable material which shall be fitted to all side scuttles, natural ventilators, skylights and doors leading to the open deck.

(b)

Any door to which such screens are fitted being a door at the entrance to a permanent or temporary hospital in a ship to which these paragraph apply, shall be of a self-closing type.

9. Recreation facilities: - (1) On every ship, appropriate seafarers' recreational facilities, amenities and services, as adapted to meet the special needs of seafarers who must live and work on ships, shall be provided on board for the benefit of all seafarers.

(2)

Recreational facilities and services should be reviewed frequently to ensure that they are appropriate in the light of changes in the needs of seafarers resulting from technical, operational and other developments in the shipping industry.

(3)

Furnishings for recreational facilities should as a minimum include a bookcase and facilities for reading, writing and, where practicable, games.

(4)

The following facilities may also be provided, at no cost to the seafarer, where practicable-

(a)

smoking room;

(b)

television viewing and the reception of radio broadcasts;

(c)

showing of films, the stock of which should be adequate for the duration of the voyage and, where necessary, changed at reasonable intervals;

(d)

sports equipment including exercise equipment, table games and deck games;

(e)

facilities for swimming;

(f)

a library containing vocational and other books, the stock of which should be adequate for the duration of the voyage and changed at reasonable intervals;

(g)

facilities for recreational handicrafts;

(h)

electronic equipment such as a radio, television, video recorders, digital video disc or compact disc player, personal computer and software and cassette recorder or player;

(i)

where appropriate, the provision of bars on board for seafarers unless these are contrary to national, religious or social customs; and

(j)

reasonable access to ship-to-shore telephone communications, and e-mail and Internet facilities, where available, with any charges for the use of these services being reasonable in amount.

10. Maintenance and Inspection of Seafarer Accommodation. - (1) (a) The seafarer accommodation in every ship to which these rules apply, shall be maintained in a clean and habitable condition and equipments and installations required by these rules shall be maintained in good working order. Every part of the seafarer accommodation (not being a store room) shall be kept free of store and other property not belonging to or provided for the use of persons for whom that part of the accommodation is appropriated, and in particular, no cargo shall be kept in any part of the seafarer accommodation.

(b)

The Master of the ship, or an officer appointed by him for the purpose, accompanied by one or more members of the seafarer, shall inspect every part of the seafarer accommodation at least once in two weeks to ensure that seafarer accommodation is clean, decently habitable and maintained in a good state of repair. The results of each such inspection shall be recorded and be available for review. The Master of the ship shall cause to be entered in a book specially kept for the purpose a record of-

(i)

the time and date of the inspection;

(ii)

the names and ranks of the persons making the inspection; and

(iii)

particulars in which the seafarer accommodation or any part thereof was found by any of the persons making the inspection not to comply with these rules.

(2)

Inspection by a Surveyor.- The seafarer accommodation in a ship shall be inspected by a Surveyor whenever-

(i)

the ship is registered or re-registered in India ;

(ii)

any part of the seafarer accommodation in the ship undergoes substantial alterations or repairs ;

(iii)

the number of persons accommodated in any space is increased above that marked in accordance with sub-paragraph (11) of paragraph 1; and

(iv)

in the opinion of a Surveyor, there is reason to believe (whether or not in consequence of a complaint) that any of the provisions of these rules has been contravened in respect of that ship, or that any condition subject to which the Directorate has exempted the ship from a requirement of these rules has not been satisfied;

(v)

a request for an inspection of the seafarer accommodation has been made to the Directorate or to the Mercantile Marine Department, by or on behalf of the ship-owner of the ship or of any organisation which appears to the representative of the ship-owners of Indian ships or of the seafarer concerned; or

(vi)

a complaint has been lodged with an officer duly authorised under section 176 of the Act and complies with the following requirements, namely:-

(a)

the complaint shall be in writing, signed by the Master or three or more members of the seafarer;

(b)

the complaint shall specify the respects in which it is alleged that the seafarer accommodation in the ship does not comply with these rules;

(c)

the complaint shall be lodged without undue delay; and

(d)

the complaint shall be lodged at least 24 hours before the ship is due to sail, unless the ship is in port for less than 24 hours.

11. Prevention of noise and vibration. - (1) The seafarer accommodation, recreational and catering facilities shall be located as far as practicable away from the engines, steering gear rooms, deck winches, ventilation, heating and airconditioning equipment and other noisy machinery and apparatus.

(2)

Acoustic insulation or other appropriate sound-absorbing materials of approved type shall be used in the construction and finishing of bulkheads, deck heads and decks within the sound-producing spaces as well as self-closing noise-isolating doors for machinery spaces.

(3)

Engine rooms and other machinery spaces shall be provided, wherever practicable, with sound proof centralised control rooms for engine-room personnel. Working spaces, such as the machine shop, shall be insulated, as far as practicable, from the general engine-room noise and measures should be taken to reduce noise in the operation of machinery.

(4)

The limits for noise levels for working and living spaces should be in conformity with the Code on Noise Levels on Board Ships' of the 'International Maritime Organization and of International guidelines on exposure levels, including those in the code of practice entitled 'Ambient factors in the workplace, 2001' of the International Labour Organization, and, where applicable, the specific protection recommended by the International Maritime Organization, and with any subsequent amending and supplementary instruments for acceptable noise levels on board ships. A copy of the applicable instruments in English or the working language of the ship should be carried on board and should be accessible to seafarers.

(5)

No accommodation or recreational or catering facilities shall be exposed to excessive vibration in accordance with the standards prescribed by International Maritime Organisation and International Labour Organisation.

12. Galleys, Provision rooms, cold storage, refrigerating equipment. - (1) (a) Every ship shall be provided with a galley for the preparation of food for the seafarer, unless the circumstances are such that no members of the seafarer are required to mess on board.

(b)

The galley shall be situated as near as may be to the mess rooms provided for the seafarer and any necessary equipment shall be provided to enable food to be served in the mess rooms under all weather conditions.

(c)

There shall be no direct opening between the galley and any sleeping room.

(d)

Every galley shall be provided with exhaust fans which will draw off fumes from the cooking appliances therein and discharge the fumes into the open air.

(e)

The floor of the galley shall be provided with gutters and with scuppers which shall be led overboard or to an enclosed tank served by mechanically operated suction pump. The position and number of the gutter and scuppers shall be such as will ensure the efficient drainage of the floor.

(f)

The cooking appliances in the galley shall be arranged in a manner which shall facilitate the cleaning of the galley.

(g)

All cupboards and dressers in the galley shall be made of material which is impervious to dirt and moisture and can easily be kept clean. All metal parts of the cupboards and dressers shall be rustproof. The bottoms of all cupboards and dressers in the galley shall either be flush with the deck or shall be so fitted as to enable the deck space beneath them to be readily accessible for cleaning.

(h)

Every galley shall be provided with such equipment as will enable food in sufficient quantity to be properly and readily prepared for the persons whom the galley is intended to serve, and the cooking utensils to be hygienically cleaned.

(i)

Every galley shall be provided with one or more cooking appliances with an oven or cooking range of adequate capacity.

(2)

Dry Provision Rooms.- (a) In every ship, not being in ship, in which each member of the seafarer makes his own food, one or more store rooms shall be provided for the storage of dry provisions for the seafarer. Such rooms shall be fitted with sufficient shelves, cupboards and bins having regard to the maximum period likely to elapse between successive replenishments of stores and to the maximum number of persons for whom food is to be served.

(b)

Every dry provision store room shall be enclosed by bulkheads constructed of steel or other suitable material.

(c)

Access to every dry provision store room shall be obtained from a passageway, galley, pantry or another store room, or from a position on an open deck with, in so far as is reasonable and practicable in the circumstances, shall be a protected position.

(d)

Every dry provision store room shall be so situated, constructed and ventilated as to avoid deterioration of the stores through heat, draught, condensation or infestation by insects or vermin.

(3)

Cold store rooms and Refrigerating Equipment.- (a) In every ship, means shall be provided to store perishable provisions. In ships below 3000 gross tons, refrigerated or box freezers may be located in a dry provision room or galley or any other suitable place close to galley.

(b)

Access to every cold store room shall be obtained from a passageway, galley or pantry or from another store room.

Second Schedule

[See rule 2(1) (k)]

Trunked Mechanical Ventilation System

1. The trunked mechanical ventilation system referred to in clause (k) of sub-rule (1) of rule 2 of these rules (in this Schedule referred to as "the system") shall in relation to the spaces specified in the second column of Table I annexed hereto, be capable of the respective standards of performance, specified in the third or fourth column of that Table whichever standard shall be the higher in the circumstances: Provided that nothing in Table I shall be taken to relate to a space specified in the second column of Table II annexed hereto.

2. The system shall, in relation to the spaces specified in the second column of Table II, be capable of the respective standards of performance specified in the third and fourth columns of that Table.

3. If any store room is served by a fan which provides warmed air for any other spaces, the store room shall be provided with ventilation trunking separate from that serving such other space.

4. The clear area of the exhaust openings provided in conjunction with the system shall be sufficient to ensure that the

velocity of air at each exhaust opening does not exceed 5.08 metres per second when the system is in operation.

5. The speed of every supply fan forming part of the system shall be capable of being varied.

6. The system shall be quiet in operation.

7. All trunking forming part of the system shall be provided with non-return flaps where such flaps are necessary for the exclusion of effluvia and the preservation of the health of the crew.

8. If the system is designed to circulate heated air as the sole means of heating the seafarer accommodation, the system shall be sub-divided into sections which can be separately controlled to the extent necessary to enable a comfortable temperature to be maintained in all parts of the seafarer accommodation.

Category

Space

Fresh air changes per hour

Volume of fresh air for each person likely to use
the room at any one time (m³/min)

(1)

(2)

(3)

(4)

A

Spaces other than those in category

(C) in deck houses above the upper or shelter deck :-

(1) outside rooms (other than rooms
adjoining machinery casing)

(2) inside rooms and rooms adjoining machinery casing

10

15

1.42

1.42

B

Spaces other than those in category

(C) in side-to-side superstructures above the upper or shelter
deck:

(1) outside rooms (other than rooms
adjoining machinery casing)

(2) inside rooms and rooms adjoining machinery casing

12

15

1.42

1.42

C

Mess rooms, smoking rooms and
recreation rooms (in each case above the upper or shelter decks):

(1) not adjoining machinery casing

(2) adjoining machinery casing

15

18

0.71*

0.71*

D

Passageways adjoining machinery casings

4

E

Rooms in between decks (including shelter between decks) of ships propelled by internal combustion machinery

- (1) Rooms clear of machinery casing
- (2) Rooms abreast of but not adjoining machinery casing
- (3) Rooms adjoining machinery casing (other than mess rooms, smoking rooms and recreation rooms)

12

12

15

1.42

1.42

1.7

- (4) Mess rooms, smoking rooms, and recreation rooms (in each case adjoining machinery casing)

18

0.71

F

Rooms in tween decks

(including shelter tween decks) of steamships :-

- (1) Rooms clear of machinery casing
- (2) Rooms abreast of, but not adjoining machinery casing.
- (3) Rooms immediately above machinery casing or abreast of and adjoining machinery casing (other than mess rooms, smoking rooms and recreation rooms)
- (4) Mess room, smoking rooms and recreation rooms (in each case adjoining machinery casing)

12

15

18

20

1.42

1.7

1.7

0.85**

* whatever the number of persons likely to use the room at one time, the total volume of fresh air per minute shall not be required to be such as would result in more than 20 fresh air changes per hour.

** whatever the number of persons likely to use the room at any one time, the total volume of fresh air per minute shall not be required to be such as would result in more than 24 fresh air changes per hour.

Table II

Category

Space

Fresh air change per hour

Supply

Exhaust

(1)

(2)

(3)

(4)

G

Galleys

20(a)(b)

40(b)

H

Sanitary accommodation, drying rooms and pantries

10

20

J

Wards in permanent hospitals

12 or such greater number as would result in the supply of not less than 1.42 cubic metres of fresh air per minute for each bed in the room.

--

K

Dry provision store rooms

Not less than 10 and not more than 20

--

(a)

if at least two sides of the galley are exposed to the weather.

(b)

The Central Government may exempt any ship from these requirements to the extent that it is satisfied that compliance therewith is unnecessary by reason of the insulation of the equipment in the galley, or by reason of the size of the galley.

Third Schedule

[See Schedule 1, Para 1(11)(a)]

1. Marking for Sleeping Rooms

Certified for (*) seafarer(s)

2. Marking for Spaces other than Sleeping Rooms

Certified for [Chief Officer]/[Master]/[Chief Engineer]/[**]

Certified for (*) officers.

Certified for (*) [ratings]/[petty officer].

(*) There shall here be inserted the maximum number of officers/seafarers who may be accommodated in the room in accordance with these rules .

(**) In the case of a room intended for the sole use of any other officer the rank of that officer shall here be substituted.

Fourth Schedule

[See Schedule 1, para 3(3)]

Electric Lighting

Definition: "General Measurement Points" means, in relation to any space those points which measured at a height of 850mm above the floor fall on an imaginary line drawn vertically through the following points:-

? every point mid way between every 2 adjacent lamp in that space;

? every point mid way between and lamp and any position on the boundary of that space to which that lamp is nearer than any other lamp; and

? where any part of the space available for free movement is shielded from the direct rays of a lamp by a reentrant angle formed in the boundary of that space the central point of the space so shielded.

(A) Sleeping Room and Day Room:

(1)

At general measurement points

50 lux

(2)

At every Mirror

200 lux

(3)

At every seat at a writing deck or table

150 lux

(4)

At not less than half the seats (other than those mentioned in (3) above) in a sleeping room provided for use of more than one person

150 lux

(B) Mess Room

(1)

At general measurement points

100 lux

(2)

At every table and sink

150 lux

(C) Recreational Rooms (including for watching films and television hobbies, and games room):

(1)

At general measurement points

50 lux

(2)

At every recreational table

100 lux

(3)

At every seat at a writing deck or table

150 lux

(4)

At not less than half the seats (other than those mentioned in (3) above)

150 lux

(D) Hospital

(1)

At general measurement points

50 lux

(2)

At any wash room

200 lux

(3)

At least one fixed lamp shall be installed in addition to the electric reading lamp required by subpara (2) of para 3 to be provided at the head of each bed.

150 lux

(E) Offices and Studies

(1)

At general measurement points

100 lux

(2)

At every seat at writing desk or table

200 lux

(F) Sanitary Accommodation (including sanitary accommodation in hospital):

(1)

At general measurement points

50 lux

(2)

At every Mirror

200 lux

(G) Laundries

(1)

At general measurement points

100 lux

(H) Drying Room:

(1)

At the center of spaces

50 lux

(I) Galley (including bakeries and pantries):

(1)

At working positions

The light shall be so disposed as to ensure that shelves and cupboards receive the maximum amount of light

300 lux

(J) Dry Provision Store Room and Cold Store Room:

(1)

At general measurement points

The light shall be so disposed as to ensure that shelves and cupboards receive the maximum amount of light

100 lux

(K) Passage ways companionways and covered deck recreation spaces:

(1)

At general measurement points

50 lux

A light shall be placed -

(a) at the

head of each stairway, ladder and hatchway, and

(b) at or

near the lockers provided for oilskins or working clothes.

Fifth Schedule

Certificate of Seafarer Accommodation

[See rule 6]

Certificate of Seafarer Accommodation

Certificate No.

Issued under the provisions of the

Merchant Shipping (Seafarer Accommodation) Rules, 2016.

Under the authority of the Government of India

Name of Ship

Distinctive Number or Call Sign

IMO Number

Port of Registry

Gross Tonnage

Date of Keel Laid*

Type of Ship

:

.....

Area of Operation

:

Unlimited / Restricted (see Remarks)

This is to certify that the seafarer accommodation and other associated spaces of the above ship has been surveyed in accordance with rule 5 of the Merchant Shipping (Seafarer Accommodation) Rules, 2016, and Maritime Labour Convention 2006, and found that that the ship is in compliance with the provisions of those rules.

The accommodation arrangements are adequate for a maximum ofseafarers, as indicated below.

Master

:

persons

Officer

:

persons

Petty Officers

:

persons

Ratings

:

persons

Total

:

persons

Exemptions granted if any:

REMARKS:

Issued at on the

Name and designation of the Issuing Authority

Related AI tags, queries and research notes

Translation